

SUPPLY CHAIN MANAGEMENT

Section H – Special Terms and Conditions

Special Article 1: Reserved

Special Article 2: Reserved

Special Article 3: Reserved

Special Article 4: Electronic Web Submittal of Labor Compliance Reports (Davis-Bacon)

Each Contractor and Lower-tier Subcontractor shall submit weekly certified payroll reports and labor compliance documentation electronically to SLAC utilizing Labor Compliance Program Tracker (LCP Tracker), a web-based software tool. Access to LCP Tracker is granted by SLAC, each Contractor will be issued a unique log-on identification and password.

Special Article 5: Field Change Order Authority

The Field Construction Manager (CM) or the Project Manager (PM) is authorized, in accordance with Article 30 of the Fixed Price Terms and Conditions, (Section G), to issue Field Change Order(s) with a Not-To-Exceed (NTE) amount of up to a maximum amount of Twenty-Five Thousand dollars (\$25,000.00). The Subcontract Administrator may change the NTE authority of the CM or PM by subcontract modification.

Special Article 6: Key Personnel

The personnel specified below are considered essential to the work performed hereunder. The Contractor shall notify the Purchasing Officer in writing 30 calendar days prior to changing key personnel of its own volition. Notification shall include justification (including proposed replacement) in sufficient detail to permit evaluation of the impact on the performance of this Subcontract. No replacement shall be made by the Contractor without the written consent of the Purchasing Officer. The list of key personnel may be modified from time to time during this Subcontract to either add or delete personnel, as appropriate.

Name

Title

Project Manager

Superintendent

Quality Control Manager

Safety Manager

Designer of Record

Special Article 7: Final Completion

Final Completion shall be achieved upon all work being complete, all agencies and project approvals have been received, all systems and equipment are fully functioning per Technical Specifications, all closeout documentation being complete (including red-line as-builts, CAD files, operation & maintenance manuals, badges are returned, keys received, warranties, Certified Payroll are complete and finalized, final submission of small business reporting, punch list items), and Final Release being received and accepted.

Special Article 8: Subcontract Administration

- A. The University's contractual representative for this Subcontract is Sam Kallas. The contractual representative is the only person authorized to make changes in the requirements of this Subcontract or to make modifications to this Subcontract, including changes or modifications to the Statement of Work and the Schedule. The Subcontractor shall direct all notices and requests for approval required by this Subcontract to the contractual representative at the following address:

SLAC National Accelerator Laboratory
Attn: Sam Kallas
2575 Sand Hill Road, M/S 01
Menlo Park, CA 94025
skallas@slac.stanford.edu

Any notices and approvals required by this Subcontract from the Contractor to the Subcontractor shall be issued by the contractual representative.

- B. The University's Technical Representative for this Subcontract is Collin Chew. The Technical Representative is the person designated to monitor the Subcontract work and to interpret and clarify the technical requirements of the Statement of Work. The Technical Representative is not authorized to make changes to the work or modify this Subcontract.

Special Article 9: Government Furnished Property

- A. The delivery schedules set forth in this subcontract are based upon the premise that the Government-furnished property will be delivered to the Seller in sufficient time to enable Seller to meet the said delivery schedules. In the event that such Government-furnished property is not delivered to Seller in sufficient time to enable Seller to meet said delivery schedules, the University shall, if requested by the Seller, determine if any delay has been occasioned by the Seller, and if so, shall grant a reasonable extension of the time for completion of performance. The University shall not be liable to the Seller for damages or loss of profit by

reason of any delay in the delivery of said Government furnished property, except that in case of such delay, upon written request of the Seller an equitable adjustment shall be made in the delivery schedule, or price, or both, and in other contractual provisions affected thereby, in accordance with the procedures provided for in Paragraph 10 entitled, "Changes" in Stanford Linear Accelerator Center STANDARD TERMS AND CONDITIONS.

- B. Government-furnished property shall not be affected by the incorporation or attachment thereof to any property not owned by the Government, nor shall any such property, or any part thereof, be or become a fixture or lose its identity as personal property by reason of affixation to any realty. The Seller shall maintain adequate property control records of such property consistent with good business practice and as may be prescribed by the University and shall cause all such property to be clearly marked (if not so marked) to show that it is property of the Government.
- C. Government-furnished property shall be used for the performance of this subcontract only.
- D. The Seller shall, in accordance with sound industrial practice, protect and preserve such Government- furnished property until disposed of by the Seller in accordance with this article. Should replacement of any such property become necessary during the term of this subcontract other than by reason of the negligence or fault of the Seller, the Seller shall, at the direction and for the account of the University, take all reasonable steps to protect the property remaining and shall repair or replace the lost, destroyed, or damaged property. Title thereto shall vest in the Government and any delay occasioned thereby shall be considered an excusable delay under this subcontract.
- E. Unless otherwise provided in this subcontract, the Seller assumes the risk of and shall be responsible for any loss of or damage to the Government-furnished property in its possession except for reasonable wear and tear and except to the extent that such property is consumed in the performance of this subcontract.
- F. The University shall at all times have access to the premises wherein any Government-furnished property is located.
- G. Upon completion of this subcontract, the Seller shall submit, in a form acceptable to the University, inventory schedules covering all items of Government-furnished property not consumed in the performance of this subcontract (including any resulting scrap), or not theretofore delivered to the University. Upon the University's order the Seller shall prepare for shipment and, at the University's expense, shall store or deliver said property as may be directed by the University, or make such other disposal of said property as may be directed by the University.